

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

**COMPLAINANT 20230930-DK-BUTTERFLY-1, INC.'S
NOTICE OF INTENT TO ENFORCE SUBPOENA AGAINST
THIRD PARTY APEX LOGISTICS INTERNATIONAL INC.**

Pursuant to FMC Rule 150(c), 46 C.F.R. 502.150(c), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant” or “BBBY”),¹ hereby gives notice of its intent to seek enforcement of a subpoena signed by the Presiding Officer on September 19, 2025, and served on third party Apex Logistics International Inc. (“Apex”).

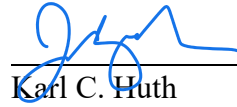
The subpoena for documents and electronically stored information was formally served on Apex on November 14, 2025, after Apex declined to accept service by email. Since then, Apex’s counsel has not answered phone calls or emails seeking to confirm if Apex will comply with the subpoena. Apex has neither complied with nor moved to quash the subpoena. Complainant made a final follow-up attempt on Tuesday, December 16, 2025. Informal methods having failed, Complaint currently intends to seek enforcement of the subpoena in the appropriate district court, as authorized by Rule 150(c).

[SIGNATURE PAGE FOLLOWS]

¹ Complainant filed a change of name certificate with the New York State Division of Corporations, State Records, and Uniform Commercial Code on September 21, 2023, by and through which Complainant changed its corporate name from Bed Bath & Beyond, Inc. to 20230930-DK-Butterfly-1, Inc.

DATED: December 26, 2025

Respectfully submitted,



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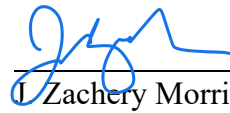
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent BAL Container Line Co., Limited by emailing a copy to their counsel of record listed below:

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Counsel for Respondent BAL Container Line Co., Limited

Dated: December 26, 2025



Zachery Morris
*Counsel for Complainant 20230930-DK-
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